

GINSBURG, J., dissenting

him a federal damages remedy against the federal agents who had disregarded the Fourth Amendment's prohibitions against unreasonable searches and seizures. *Id.*, at 390–397. The Court did so directly under the Constitution, for Congress had provided no statutory claim for relief to redress the wrongful conduct. See *ibid.* “Historically,” the Court observed, “damages have been regarded as the ordinary remedy for an invasion of personal interests in liberty.” *Id.*, at 395. Given the circumstances presented in *Bivens*, the Court found “no special factors counselling hesitation [despite] the absence of affirmative action by Congress.” *Id.*, at 396. Justice Harlan concurred in the judgment, emphasizing that damages were “the only possible remedy for someone in [the plaintiff’s] alleged position.” *Id.*, at 409–410 (injunctions could not “obviate the harm” done, the United States was “immune to suit,” and the exclusionary rule was “irrelevant” for those “innocen[t] of the crime charged”).

The Court has extended *Bivens* twice. See *Davis v. Passman*, 442 U. S. 228 (1979) (sex-discrimination claim against a congressman under the Fifth Amendment’s Due Process Clause); *Carlson v. Green*, 446 U. S. 14 (1980) (inadequate medical treatment claim against federal prison officials under the Eighth Amendment). Though the Court has more recently declined to extend *Bivens* to new contexts, see *Abbasi*, 582 U. S., at 135–136, *Bivens* remains the law of the land in settings in which the decision has been held to apply, see *Abbasi*, 582 U. S., at 134.

In *Abbasi*, former immigration detainees alleged mistreatment and discrimination following the September 11, 2001 terrorist attacks. *Id.*, at 128–130. Invoking *Bivens*, the plaintiffs sued the former Attorney General, Federal Bureau of Investigation Director, and Immigration and Naturalization Service Commissioner, as well as detention-facility wardens, under the Fourth and Fifth Amendments. 582 U. S., at 129–130. Though recognizing that one of the plaintiffs’ *Bivens*